

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Annette Rodriguez	Team: Squad #08	CCRB Case #: 202201365	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/05/2022 3:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/5/2023	Precinct: 83		
Date/Time CV Reported Sat, 03/05/2022 4:29 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 03/05/2022 4:29 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Melissa Espinal	17591	958557	083 PCT
2. SGT Thomas Bilach	02505	948181	083 PCT
3. PO Alex Romerochavez	23443	972219	083 PCT
4. PO Amanda Clabough	27342	969017	083 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . PO Alex Romerochavez	Abuse: Police Officer Alex Romerochavez entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . SGT Thomas Bilach	Abuse: Sergeant Thomas Bilach entered § 87(2)(b) in Brooklyn.	C . Exonerated
D . PO Amanda Clabough	Abuse: Police Officer Amanda Clabough entered § 87(2)(b) in Brooklyn.	D . Exonerated
E . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal entered § 87(2)(b) bedroom at § 87(2)(b) in Brooklyn.	E . Substantiated
F . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal searched § 87(2)(b) bedroom at § 87(2)(b) in Brooklyn.	F . Substantiated
G . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal entered an individual's bedroom at § 87(2)(b) in Brooklyn.	G . Substantiated
H . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal entered § 87(2)(b) bedroom at § 87(2)(b) in Brooklyn.	H . Substantiated
I . SGT Thomas Bilach	Abuse: Sergeant Thomas Bilach entered § 87(2)(b) bedroom at § 87(2)(b) in Brooklyn.	I . Substantiated
J . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal searched § 87(2)(b) bedroom at § 87(2)(b) in Brooklyn.	J . Substantiated
K . SGT Thomas Bilach	Force: Sergeant Thomas Bilach used physical force against § 87(2)(b)	K . Unfounded
L . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal seized § 87(2)(b) property.	L . Substantiated
M . SGT Thomas Bilach	Abuse: Sergeant Thomas Bilach seized § 87(2)(b) property.	M . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
N . SGT Thomas Bilach	Abuse: Sergeant Thomas Bilach failed to provide § 87(2)(b) with a business card.	N . Substantiated
O . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal failed to provide § 87(2)(b) with a business card.	O . Substantiated
P . SGT Thomas Bilach	Abuse: Sergeant Thomas Bilach failed to provide § 87(2)(b) with a business card.	P . Substantiated
Q . PO Melissa Espinal	Abuse: Police Officer Melissa Espinal failed to provide § 87(2)(b) with a business card.	Q . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On March 5, 2022, § 87(2)(b) filed this complaint via the CCRB's website.

On March 5, 2022, at approximately 3:10 p.m., § 87(2)(b) called 911 on her roommate, § 87(2)(b) § 87(2)(b) § 87(2)(b) and two additional roommates lived at § 87(2)(b) in Brooklyn. The apartment consisted of a shared living room, shared kitchen, and four private bedrooms, each with their own bathroom inside.

PO Melissa Espinal, PO Alex Romerochavez, Sgt. Thomas Bilach, and PO Amanda Clabough, all from the 83rd Precinct, responded to the location and entered the apartment (**Allegations A-D: Abuse of Authority, Exonerated**). Once inside the apartment, PO Espinal entered § 87(2)(b) bedroom and searched it (**Allegations E & F: Abuse of Authority: Substantiated**). At PO Espinal's direction, PO Romerochavez entered one of the roommate's bedroom (**Allegation G: Abuse of Authority, Substantiated**).

After § 87(2)(b) refused to exit his bedroom, PO Espinal entered § 87(2)(b) bedroom followed by Sgt. Bilach (**Allegations H & I: Abuse of Authority, Substantiated**). PO Espinal searched § 87(2)(b) bedroom (**Allegation J: Abuse of Authority, substantiated**). Sgt. Bilach allegedly pushed § 87(2)(b) while inside of his bedroom (**Allegation K: Force, Unfounded**). Prior to exiting § 87(2)(b) bedroom, PO Espinal removed a set of keys from the bedroom, under Sgt. Bilach's supervision (**Allegation L & M: Abuse of Authority, Substantiated**).

Sgt. Bilach and PO Espinal failed to provide § 87(2)(b) with a business card (**Allegations N & O: Abuse of Authority, Substantiated**). Sgt. Bilach and PO Espinal failed to provide § 87(2)(b) with a business card (**Allegation P & Q: Abuse of Authority, Substantiated**). EMS responded to the location and spoke with the officers and § 87(2)(b) was not removed to the hospital. § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

Body worn camera footage was obtained from PO Espinal, PO Romerochavez, Sgt. Bilach, and PO Clabough (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Melissa Espinal entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Alex Romerochavez entered § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Sergeant Thomas Bilach entered § 87(2)(b) in Brooklyn.

Allegation (D) Abuse of Authority: Police Officer Amanda Clabough entered § 87(2)(b) in Brooklyn.

§ 87(2)(b) was interviewed by the CCRB on March 9, 2022. § 87(2)(b) testified that he shared an apartment with four roommates. The apartment was located on the § 87(2)(b) floor and consisted of a shared living room, a shared kitchen, and each roommate had their own private bedroom with their own private bathroom inside. One of § 87(2)(b) roommates, § 87(2)(b) constantly complained to § 87(2)(b) about noise coming from his room. A few days prior to this incident, § 87(2)(b) told her to stop knocking on his door to complain about noise. § 87(2)(b)

was in his bedroom cleaning and listening to music on the date of the incident. He acknowledged the music was loud enough to be heard from any room in the apartment as the walls were very thin. § 87(2)(b) went into his bathroom and began taking a shower. A few minutes later, § 87(2)(b) heard persistent knocking at his bedroom door. He got out of the shower and quickly wrapped a jacket around himself that was hanging behind the door. § 87(2)(b) opened the door approximately four inches wide, saw it was the police, and asked what was going on. § 87(2)(b) observed approximately 20 officers inside of the common areas of the apartment. § 87(2)(b) was in the living room, more than 10 feet away from § 87(2)(b) bedroom, giving a statement to an officer. § 87(2)(b) believed that § 87(2)(b) had invited the officers into their apartment. § 87(2)(b) told the officers that he was taking a shower and would be right out (Board Review 02).

§ 87(2)(b) was interviewed by the CCRB on March 21, 2022. § 87(2)(b) testified that on March 5, 2022, at approximately 3:10 p.m., she was inside her apartment located at § 87(2)(b), in Brooklyn when she heard her roommate, § 87(2)(b) making “strange” barking or grunting noises inside of his bedroom. § 87(2)(b) would shout random words out loud, bang on walls and pace around the apartment. Based on previous conversations with the landlord, § 87(2)(b) believed that § 87(2)(b) had a mental disability, though she did not know which one. § 87(2)(b) believed that § 87(2)(b) was hitting himself against the wall based on the noises she heard coming from inside of his bedroom. § 87(2)(b) had never actually seen § 87(2)(b) hit himself or throw himself against a wall. § 87(2)(b) sent § 87(2)(b) a text message asking, “§ 87(2)(b) are you ok? Do you need help? Should I call the cops?” § 87(2)(b) did not reply to § 87(2)(b) message. § 87(2)(b) knocked on § 87(2)(b) door to check if he was ok. § 87(2)(b) opened the door, appeared upset, and “charged” at § 87(2)(b) by walking towards her in an aggressive manner. He yelled at her and told her not to knock on his door. § 87(2)(b) did not make physical contact with § 87(2)(b) at any point. § 87(2)(b) went back into his bedroom, closed the door, and continued making the same noises. § 87(2)(b) called 911 to make a complaint and requested that officers come and investigate. § 87(2)(b) reported to the 911 operator that there was something wrong with § 87(2)(b) and when she tried to find out if he was ok, he “charged” at her. Officers arrived at the location and § 87(2)(b) opened the downstairs door for them and led them up the stairs and into their apartment located on the § 87(2)(b) floor. § 87(2)(b) gave the officers permission to enter the apartment by opening the door for the officers and allowing them in (Board Review 03).

Sgt. Bilach was interviewed by the CCRB on April 26, 2022. Sgt. Bilach testified that he and PO Clabough received a call for an “Emotionally Disturbed Person” at § 87(2)(b) in Brooklyn. The officers arrived at the location at approximately 3:13 p.m. and went up to the § 87(2)(b) floor of the building where they met with the complainant, § 87(2)(b). § 87(2)(b) allowed the officers into the apartment. PO Espinal and PO Romerochavez were already on scene when Sgt. Bilach and PO Clabough arrived (Board Review 04).

PO Romerochavez was interviewed by the CCRB on April 27, 2022. PO Romerochavez’s statement was generally consistent with Sgt. Bilach’s statement. Sgt. Bilach and PO Clabough followed behind PO Romerochavez and PO Espinal as they entered the apartment (Board Review 05).

PO Espinal was interviewed by the CCRB on May 11, 2022. PO Espinal’s statement was generally consistent with that of Sgt. Bilach and PO Romerochavez (Board Review 06).

PO Espinal’s BWC shows at the 1:00 timestamp, PO Espinal and PO Romerochavez arrive at the entrance of the building where they are greeted by § 87(2)(b) who is holding the

building door open for the officers. PO Espinal asks § 87(2)(b) questions about why she called the police as § 87(2)(b) leads the officers up the stairs. At the 1:43 timestamp, § 87(2)(b) opens her apartment door with a set of keys and holds the door open for PO Espinal as she enters the apartment followed by PO Romerochavez. At the 2:11 timestamp, Sgt. Bilach is seen entering the apartment and the apartment door is left opened (Board Review 01).

According to People v. Jackson, 105 A.D.3d 866 [2d Dept. 2013], the police may lawfully conduct a warrantless entry when they have obtained voluntary consent from a party who possesses control over the premises or personal property in question (Board Review 07).

It is undisputed that § 87(2)(b) called 911 and allowed the officers entry into the apartment. § 87(2)(g)

It is therefore recommended that **Allegations A-D** be closed as **Exonerated**.

Allegation (E) Abuse of Authority: Police Officer Melissa Espinal entered § 87(2)(b) bedroom at § 87(2)(b) in Brooklyn.

Allegation (F) Abuse of Authority: Police Officer Melissa Espinal searched § 87(2)(b) bedroom at § 87(2)(b) in Brooklyn.

Allegation (G) Abuse of Authority: Police Officer Melissa Espinal entered an individual's bedroom at § 87(2)(b) in Brooklyn.

Neither § 87(2)(b) nor § 87(2)(b) alleged that any officer entered § 87(2)(b) bedroom or the bedroom of any other roommate in the apartment. However, PO Espinal's BWC and PO Romerochavez's BWC show that PO Espinal entered § 87(2)(b) bedroom and searched it and PO Romerochavez entered the bedroom of an unidentified third roommate, at PO Espinal's direction.

PO Espinal's BWC shows at the 1:01 timestamp, Officers are greeted at the entrance of the building by § 87(2)(b) who is holding the door open for them, and confirms that she called 911. At 1:13, PO Espinal asks § 87(2)(b) if § 87(2)(b) is known to "be on anything" and § 87(2)(b) states that she does not know, but she feels that he is "unstable." At 1:27, PO Espinal asks § 87(2)(b) what § 87(2)(b) is doing today and § 87(2)(b) states that he is hitting the walls, banging the walls, and yelling. § 87(2)(b) states that § 87(2)(b) opened her door and "came at her." PO Espinal asks if there are any weapons and § 87(2)(b) states there are not. At 1:45, § 87(2)(b) enters the apartment and officers enter behind her. PO Espinal asks where § 87(2)(b) room is and § 87(2)(b) points to the end of the hallway on the right side of the apartment. PO Espinal yells out § 87(2)(b) immediately upon entering. At 2:00, § 87(2)(b) tells PO Espinal that § 87(2)(b) bedroom is opposite of her room. At 2:04, PO Espinal opens § 87(2)(b) bedroom door and says "Ok, I just want to make sure he is not here," as she enters the bedroom and opens a closet door. At 2:11, Sgt. Bilach is seen entering the apartment and approaches § 87(2)(b) in the living room. At 2:26, PO Espinal asks PO Romerochavez to check the two rooms on the opposite end of the apartment to make sure that § 87(2)(b) is not in there. At 2:48, PO Romerochavez is seen at the opposite side of the apartment knocking on the doors and turning the doorknobs. At 2:48, Sgt. Bilach peeks over at PO Romerochavez and asks § 87(2)(b) "are you sure he is in there" as he points to § 87(2)(b) bedroom and § 87(2)(b) confirms that he is. At 2:52, PO Romerochavez opens the door on the left slightly, looks inside, and then closes it before returning to § 87(2)(b) door next to PO Espinal (Board Review 01).

PO Romerochavez's BWC shows at the 2:00 timestamp, PO Espinal opens the bedroom

door on the left. At 2:02, § 87(2)(b) says, “opposite that one” and PO Espinal responds “ok, I just want to make sure he is not here.” PO Romerochavez points to § 87(2)(b) bedroom and asks, “this one?” At 2:26, PO Espinal asks PO Romerochavez to check the two rooms on the opposite end of the apartment to make sure that § 87(2)(b) is not in there. Sgt. Bilach is in the living room speaking with § 87(2)(b). At 2:35, PO Romerochavez walks to the opposite side of the apartment and knocks on the door on the right. At 2:41, PO Romerochavez knocks on the door on the left before turning the doorknob and opening the door about three inches wide and looking inside. Sgt. Bilach is heard asking, “are you sure he is in there” and § 87(2)(b) responds, “he is in there.” PO Romerochavez then closes the door and joins PO Espinal outside of § 87(2)(b) room (Board Review 01).

PO Espinal stated that she and PO Romerochavez responded to a call for an alleged “emotionally disturbed person,” who was talking to himself, yelling at himself, running back in forth in the apartment, and had tried to attack § 87(2)(b). Upon entering the apartment, she observed a common area living room, a kitchen to the left of the living room, with two bedrooms to the left of the kitchen and two bedrooms to the right of the living room. § 87(2)(b) pointed to the right side of the apartment in the direction where she stated § 87(2)(b) was located. PO Espinal walked to the right side of the apartment where she observed two doors. It was unclear which of the two bedrooms § 87(2)(b) was inside. PO Espinal did not recall if § 87(2)(b) had specified which bedroom § 87(2)(b) was inside. PO Espinal had not asked § 87(2)(b) which bedroom § 87(2)(b) was inside. PO Espinal did not ask § 87(2)(b) where specifically § 87(2)(b) was because she had described § 87(2)(b) to be aggressive and as such, there was a sense of urgency. PO Espinal stated that she did not enter § 87(2)(b) bedroom and only looked inside of it through the open door. After viewing her BWC footage, PO Espinal recalled and amended her statement as she did in fact enter § 87(2)(b) bedroom and opened the closet in her bedroom to make sure that § 87(2)(b) was not in there. PO Espinal did not observe anyone inside of § 87(2)(b) bedroom and exited the room. PO Espinal then turned her attention to § 87(2)(b) door, knocked and waited for someone to respond. PO Espinal did not independently recall instructing PO Romerochavez to look into an individual’s bedroom on the other side of the apartment. After reviewing her BWC footage, PO Espinal stated that she did not have an independent recollection of PO Romerochavez standing next to her. PO Espinal explained that she did not know the layout of the apartment and was unaware if one bedroom led to another bedroom and therefore, was unable to determine which room § 87(2)(b) might have been inside. PO Espinal was a training officer and was training PO Romerochavez on the date of the incident (Board Review 06).

PO Romerochavez stated, after reviewing his BWC footage, that he did in fact knock on the other two bedrooms, located on the opposite side of the apartment from where § 87(2)(b) bedroom was, to make sure that no one else was inside of the apartment. PO Espinal instructed PO Romerochavez to go into the other bedrooms. PO Romerochavez recalled having opened a bedroom door on the other side of the apartment. PO Romerochavez opened the door because § 87(2)(b) had not responded so he was unsure as to where he was. PO Romerochavez did not observe anyone inside of the room. PO Espinal has been a member of service for more years than PO Romerochavez, who had recently gotten out of the Police Academy in January of 2022. PO Espinal was PO Romerochavez’s training officer. It was PO Romerochavez’s understanding that an officer can disagree with instruction from a training officer if what is being instructed is not morally or ethically correct. PO Romerochavez did not believe that what he was instructed to do was morally or ethically incorrect (Board Review 05).

Sgt Bilach stated he was unaware of PO Espinal or PO Romerochavez entering § 87(2)(b)

stated that he was taking a shower and would be right out. § 87(2)(b) tried to close his bedroom door to get dressed, but PO Espinal did not allow the door to close by placing her hand or her thumb on the door. PO Espinal pushed open the door and said § 87(2)(b) could not close the door. § 87(2)(b) was in front of PO Espinal as she opened his door. § 87(2)(b) told PO Espinal that he did not give her consent to enter his room. § 87(2)(b) stated that he did not have clothes on and needed to get dressed. § 87(2)(b) clothes were in his bedroom, but PO Espinal would not allow him to close his bedroom door to get dressed. § 87(2)(b) walked towards the bathroom to use the shower curtain to cover himself. PO Espinal and Sgt. Bilach entered § 87(2)(b) bedroom. An officer, who § 87(2)(b) believed to be Sgt. Bilach, pushed § 87(2)(b) as he was going into the bathroom, making contact with the left side of his back. § 87(2)(b) did not recall what led up to the push. § 87(2)(b) ran into the bathroom and put his pajamas on. § 87(2)(b) picked up his phone from the bathroom sink and recorded a short video of the interaction which showed PO Espinal in his bedroom (Board Review 09). § 87(2)(b) exited his bedroom and stood by a welcome mat that was near the bottom of the exterior of his bedroom door. PO Espinal exited the room and stood in front of § 87(2)(b) outside of his bedroom, while PO Bilach and another officer remained inside § 87(2)(b) room. PO Espinal told § 87(2)(b) that § 87(2)(b) stated that he had threatened her. § 87(2)(b) told PO Espinal that he did not threaten § 87(2)(b) and that she was the one threatening him. § 87(2)(b) did not recall the entirety of the conversation but stated that he continued talking with the officers about consent (Board Review 02).

§ 87(2)(b) did not allege that keys were removed from his bedroom. However, Sgt. Bilach's BWC footage shows at 6:17, PO Espinal exits § 87(2)(b) bedroom and as she leaves, she takes keys that are hanging from the door frame inside of § 87(2)(b) room. At 6:22, PO Espinal holds the keys up with her left hand and points to them with her right hand as she asks Sgt. Bilach, "just in case?" At 6:27, Sgt. Bilach responds, "yes." At 6:30, Sgt. Bilach says they'll wait right here as he exits § 87(2)(b) bedroom behind PO Espinal. At 7:20, PO Espinal, Sgt. Bilach, and PO Romerochavez are standing in the hallway outside of § 87(2)(b) bedroom. Sgt. Bilach asks PO Espinal how she knows that "those are for these" as he looks at the keys PO Espinal is holding and at the door lock. PO Espinal says, "well I don't, I just need something to open the door so its flat enough." At 17:39, § 87(2)(b) enters his bedroom and PO Espinal retrieves § 87(2)(b) keys from § 87(2)(b) bedroom and places them on a shoe rack in the hallway. At 17:47, Sgt. Bilach points to the keys and tells § 87(2)(b) who has exited his bedroom again, that the keys fell on the floor. (Board Review 01).

PO Espinal's BWC shows at 1:01, officers are greeted at the entrance of the building by § 87(2)(b) states that she does not know if § 87(2)(b) is "on anything" and stated that she feels that he is "unstable." PO Espinal asks § 87(2)(b) what § 87(2)(b) is doing today and § 87(2)(b) states that he is hitting the walls, banging the walls, and yelling. § 87(2)(b) states that § 87(2)(b) opened her door and "came at her." PO Espinal asks if there are any weapons and if § 87(2)(b) is "on anything" and § 87(2)(b) responds "no." At 1:45, § 87(2)(b) enters the apartment and officers enter behind her. PO Espinal asks where his room is and § 87(2)(b) points to the end of the hallway on the right. At 2:09, the officers knock on § 87(2)(b) door, but he does not answer. At 2:11, Sgt. Bilach is seen entering the apartment and approaches § 87(2)(b) At 2:17, PO Espinal knocks on § 87(2)(b) door and asks § 87(2)(b) to answer them so that they can "make sure he is ok." At 3:00, § 87(2)(b) opens the door slightly and says hello (PO Romerochavez's BWC shows a better angle of this at 3:04). PO Espinal asks § 87(2)(b) if he is ok, and he replies that he is ok. PO Espinal asks § 87(2)(b) why he is sweating so much and § 87(2)(b) states that he is in the shower. § 87(2)(b) asks if she is there to talk to him and he says "give me one second" as he closes his bedroom door. From 3:23 through 4:17, PO Espinal holds § 87(2)(b) bedroom door slightly open as § 87(2)(b) complains about needing his door closed and they have a verbal exchange regarding the door being open (PO Romerochavez's

BWC shows a better angle of this beginning at 3:20). At 4:18, PO Espinal repeats, § 87(2)(b) and asks if he is changing. At 4:23, PO Espinal walks into § 87(2)(b) bedroom. PO Espinal asks § 87(2)(b) to please put some clothes on. At 4:39, § 87(2)(b) closes the bathroom door and PO Espinal states that he had just opened his door and had agreed to put some clothes on. At 5:10, Sgt. Bilach enters § 87(2)(b) bedroom. At 5:12, PO Espinal says, § 87(2)(b) as she opens the bathroom door where § 87(2)(b) is naked in the shower. § 87(2)(b) tries to close the door with one hand while using the shower curtain to cover himself with the other and states, “Ma’am, can you back off out of my room please.” PO Espinal says no and repeatedly tells § 87(2)(b) to get out of the shower. It is unclear if PO Espinal or § 87(2)(b) closes the bathroom door. At 5:53, PO Espinal, who is inside of the bedroom, moves and unplugs what appears to be a space heater. At 6:15, § 87(2)(b) opens the bathroom door and complains about the officers being in his room. Sgt. Bilach tells § 87(2)(b) that they just want to know if he is ok. § 87(2)(b) responds that he already told them he is ok and needs to get dressed. The officers exit § 87(2)(b) bedroom. At 7:31, § 87(2)(b) exits his bedroom and stands outside of his bedroom door complaining to the officers for entering his bedroom (Board Review 01).

PO Romerochavez’s BWC footage is consistent with that of PO Espinal, prior to her entry into § 87(2)(b) bedroom. At 4:44, PO Espinal moves what appears to be a broom and dustpan inside of § 87(2)(b) bedroom (Board Review 01).

PO Espinal stated that when she received the call over the radio for an emotionally disturbed person, Central was informed by § 87(2)(b) that § 87(2)(b) was talking to himself, yelling at himself, running back in forth in the apartment, and had tried to attack her. Upon arrival, § 87(2)(b) informed PO Espinal that § 87(2)(b) had tried to attack her, was acting erratic, hitting walls, talking to himself, had yelled at her, and was upstairs in the apartment. PO Espinal and § 87(2)(b) did not discuss how § 87(2)(b) allegedly attacked § 87(2)(b). § 87(2)(b) had not made physical contact with § 87(2)(b) nor was § 87(2)(b) injured. Based on the totality of the information PO Espinal had learned, she believed that § 87(2)(b) was possibly violent, and she would have to proceed with extra caution.

Once inside of the apartment, PO Espinal knocked on § 87(2)(b) bedroom door and did not hear anything from inside of § 87(2)(b) bedroom. PO Espinal believed there to be two reasons as to why someone might not respond; if someone took their own life or if they escape. There were no factors that led PO Espinal to believe that was the case with § 87(2)(b). PO Espinal did not hear a shower running. § 87(2)(b) opened his door a few minutes later and PO Espinal observed § 87(2)(b) to be profusely sweating. PO Espinal asked § 87(2)(b) how he was feeling, what he was doing, and why he was sweating so much. § 87(2)(b) responded that he was in the shower. § 87(2)(b) was not wearing any clothing. PO Espinal was unaware that there was a bathroom inside of § 87(2)(b) bedroom until he mentioned it. § 87(2)(b) was “babbling” by speaking incoherently. PO Espinal believed that § 87(2)(b) asked her what she was doing there. § 87(2)(b) did not engage in conversation to allow PO Espinal to learn more about what was going on and seemed “jumpy” by trying to “rush her off.” PO Espinal did not know if § 87(2)(b) was attempting to rush back into the shower or did not wish to speak to her. PO Espinal did not hear a shower running after § 87(2)(b) opened the door. PO Espinal asked § 87(2)(b) to come out and get dressed and § 87(2)(b) responded that he was going to finish his shower. PO Espinal wished to speak to § 87(2)(b) further to evaluate him. PO Espinal did not observe § 87(2)(b) to be in any kind of danger and did not believe there to be an emergency taking place.

PO Espinal asked § 87(2)(b) to get dressed. § 87(2)(b) tried to close his bedroom door and PO Espinal placed her foot in the doorway to prevent it from closing. PO Espinal wished to prevent a “barricaded situation” from happening because of the nature of the job. Sgt. Bilach was in between

the living room and § 87(2)(b) bedroom while PO Romerochavez and PO Clabough remained in the living room. § 87(2)(b) ran into his bathroom. PO Espinal was able to see that § 87(2)(b) had run into the bathroom, located behind the bedroom door, because the bedroom door was slightly opened. PO Espinal observed § 87(2)(b) run behind the bedroom door. PO Espinal waited under 10 minutes to see if § 87(2)(b) would get dressed or not.

PO Espinal then entered § 87(2)(b) bedroom followed by Sgt. Bilach. Sgt. Bilach did not instruct PO Espinal to enter § 87(2)(b) bedroom. PO Espinal entered § 87(2)(b) bedroom because § 87(2)(b) had not responded or exited the room, and she was slightly concerned for his safety. PO Espinal observed the bathroom door to be closed and heard the shower running. § 87(2)(b) was talking to himself in his native language. PO Espinal knocked on the bathroom door and asked § 87(2)(b) to come out. PO Espinal pulled the bathroom door handle down to see if the door was locked or unlocked and the door opened. PO Espinal did not open the bathroom door all the way. PO Espinal observed § 87(2)(b) in the shower talking to himself. § 87(2)(b) appeared shocked, told PO Espinal to get out, and grabbed the shower curtain closer to himself. § 87(2)(b) did not appear to be in any danger. PO Espinal did not observe any injuries on § 87(2)(b). PO Espinal then returned her attention to the bedroom.

PO Espinal moved an object that was in her way while inside of § 87(2)(b) bedroom. PO Espinal did not recall what the object was that she moved. § 87(2)(b) came out of the bathroom, dressed, and shouted at Sgt. Bilach. PO Espinal and Sgt. Bilach then stepped out of § 87(2)(b) bedroom and into the hallway. PO Espinal took a pair of keys that were inside of § 87(2)(b) bedroom on the door. PO Espinal took the keys in case § 87(2)(b) decided to lock himself inside of the bedroom. PO Espinal did not know if the keys she took opened § 87(2)(b) bedroom door. § 87(2)(b) then exited his bedroom and joined the officers in the hallway approximately two minutes later. § 87(2)(b) was evaluated by EMS who made the determination that he did not have to be removed to the hospital. The officers then left the location.

PO Espinal did not observe Sgt. Bilach push § 87(2)(b) at any point during the incident. No officer made any type of physical contact with § 87(2)(b) (Board Review 06).

Sgt. Bilach stated that he and PO Clabough received a call for an Emotionally Disturbed Person (EDP) at § 87(2)(b) in Brooklyn. The officers did not have any further information regarding the scene. Upon arrival, the officers observed that PO Espinal and PO Romerochavez were already on scene and were knocking on § 87(2)(b) bedroom door. Sgt. Bilach was able to see the other officers as he interviewed § 87(2)(b). § 87(2)(b) stated that she had been having ongoing issues with § 87(2)(b) and that he had been acting somewhat “erratic” inside of his bedroom by making “unusual noises.” § 87(2)(b) played Sgt. Bilach cell phone recordings of the noises which she described as heavy breathing, panting, and banging on the walls. The recordings had been captured throughout the span of approximately three to four months. Sgt. Bilach proceeded to interview § 87(2)(b) to determine if there could have been other reasons why § 87(2)(b) might have been making those noises, such as working out. § 87(2)(b) stated that § 87(2)(b) had been acting a little more aggressive with her in addition to him making strange noises. § 87(2)(b) stated that she wished to get § 87(2)(b) help. § 87(2)(b) had not made any criminal allegation of any kind about § 87(2)(b) nor was there concern that any criminality took place.

Sgt. Bilach heard § 87(2)(b) talking with PO Espinal and PO Romerochavez through his closed bedroom door. Sgt. Bilach was approximately 20 feet away from § 87(2)(b) door. § 87(2)(b) seemed angry because he was yelling loudly at officers for attempting to make contact with him. § 87(2)(b) yelled, “don’t come into my room” and “leave me alone.” PO Espinal and PO

Romerochavez requested that § 87(2)(b) come out of his room and speak with them, but § 87(2)(b) refused. § 87(2)(b) ultimately opened his door slightly, spoke with PO Espinal, and closed his door again. Sgt. Bilach was unable to make out § 87(2)(b) physical condition because § 87(2)(b) door obstructed his view of § 87(2)(b). Sgt. Bilach did not recall if § 87(2)(b) was dressed. At that point, it was not clear to Sgt. Bilach if § 87(2)(b) was “emotionally disturbed.” Sgt. Bilach believed further investigation was needed to make that determination and wished to have a safe dialogue with § 87(2)(b). There was no apparent emergency going on inside of § 87(2)(b) bedroom, nor did it seem as if § 87(2)(b) was in any danger.

Sgt. Bilach observed PO Espinal slightly open § 87(2)(b) bedroom and believed he was no longer standing behind his door. Sgt. Bilach then observed PO Espinal enter § 87(2)(b) bedroom. Sgt. Bilach did not have any concern about PO Espinal entering § 87(2)(b) bedroom. Sgt. Bilach had not determined if § 87(2)(b) was a threat to himself or others. Sgt. Bilach walked towards § 87(2)(b) bedroom. PO Espinal informed Sgt. Bilach that the water was running, and that § 87(2)(b) was in the shower. Sgt. Bilach followed PO Espinal into § 87(2)(b) bedroom. The officers entered because they were concerned that § 87(2)(b) had retreated into the bathroom. Sgt. Bilach had not had an opportunity to look at § 87(2)(b) or determine if he was a danger to himself or others. There was no other reason as to why the officers entered § 87(2)(b) bedroom besides to confirm that he was safe and to determine if he needed a psychiatric evaluation. Sgt. Bilach had not heard the shower running until he entered § 87(2)(b) bedroom.

Sgt. Bilach observed PO Espinal grab a set of keys from inside of § 87(2)(b) bedroom as § 87(2)(b) remained in the bathroom. Sgt. Bilach did not recall where the keys were located. PO Espinal grabbed the keys and showed them to Sgt. Bilach to get an “ok” from him. The keys were removed because the officers did not want § 87(2)(b) to lock himself inside of the bedroom. Sgt. Bilach did not know what door the keys opened. The officers then exited the bedroom onto the hallway and were joined by § 87(2)(b) shortly thereafter where he was evaluated by EMS. EMS made the determination that § 87(2)(b) did not have to be removed to the hospital and the officers left the scene.

Sgt. Bilach did not push or shove § 87(2)(b) at any point during his interaction with § 87(2)(b). Sgt. Bilach did not make any physical contact with § 87(2)(b) nor did he observe any other officer do so (Board Review 04).

PO Romerochavez stated that he and PO Espinal responded to a call for an “EDP” and did not recall if he was provided with additional information. Upon arrival, § 87(2)(b) stated that § 87(2)(b) was screaming and “banging things around” in his bedroom. PO Espinal knocked on § 87(2)(b) door and called out § 87(2)(b) name. PO Romerochavez did not hear a response from inside of § 87(2)(b) bedroom. PO Romerochavez was standing approximately five to ten feet away from PO Espinal. PO Romerochavez could hear the shower on inside of § 87(2)(b) bedroom. After about one minute of PO Espinal knocking on § 87(2)(b) door, § 87(2)(b) opened his door. § 87(2)(b) tried to close and lock his bedroom door. There was no indication that § 87(2)(b) was going to lock his bedroom door in addition to closing it. PO Espinal entered § 87(2)(b) bedroom. PO Romerochavez did not hear the sound of any object being moved inside of the room. PO Romerochavez did not learn of any objects having been moved in the bedroom. PO Romerochavez did not observe PO Espinal move around any property in § 87(2)(b) bedroom. PO Romerochavez did not see any officer push § 87(2)(b) (Board Review 05).

NYPD radio communications showed that central relayed that there was an “EDP” at § 87(2)(b) from the beginning of the recording through the 00:07 timestamp. At the 2:40 timestamp, central restates the address and states, “possible mental history unknown, male, black,

running around his room, screaming, yelling, no weapons, no injuries” (Board Review 10).

According to People v. Doll, 21 N.Y.3d 665, the “emergency doctrine” recognizes that the Constitution is not a barrier to a police officer seeking to help someone in immediate danger, thereby excusing or justifying otherwise impermissible police conduct that is an objectively reasonable response to an apparently exigent situation. The exception is comprised of three elements: (1) the police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property and this belief must be grounded in empirical facts; (2) the search must not be primarily motivated by an intent to arrest and seize evidence; and (3) there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched (Board Review 08).

It is undisputed that PO Espinal and Sgt. Bilach entered § 87(2)(b) bedroom. § 87(2)(g) They learned there had been no physical contact between them, and no injuries sustained. § 87(2)(g)

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegations H-J, L, and M** be closed as **Substantiated**.

§ 87(2)(b) alleged that Sgt. Bilach had pushed him as he entered the bathroom inside of his bedroom. BWC footage shows that this did not occur. § 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **Unfounded**.

Allegation (N) Abuse of Authority: Sergeant Thomas Bilach failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: Police Officer Melissa Espinal failed to provide § 87(2)(b) with a business card.

Allegation (P) Abuse of Authority: Sergeant Thomas Bilach failed to provide § 87(2)(b) with a business card.

Allegation (Q) Abuse of Authority: Police Officer Melissa Espinal failed to provide § 87(2)(b) with a business card.

Neither § 87(2)(b) nor § 87(2)(b) alleged that any officer failed to provide them with a business card. However, PO Espinal and Sgt. Bilach both acknowledged that they did not provide business cards to § 87(2)(b) or § 87(2)(b).

PO Espinal stated that it was her understanding that it was necessary to provide a civilian

with a business card upon request. Neither § 87(2)(b) nor § 87(2)(b) requested a business card from PO Espinal. PO Espinal recalled that § 87(2)(b) requested PO Espinal's name and shield number at some point during the interaction. PO Espinal provided her name and shield number to § 87(2)(b) (Board Review 06).

Sgt. Bilach stated that it was his understanding that he was required to provide a business card if one was requested or if a pedestrian stop was performed (Board Review 04).

According to Administrative code 14-174, during a law enforcement activity, an officer shall: 3. Offer a business card to such person at the conclusion of any such activity that does not result in an arrest or summons (Board Review 11).

According to NYPD Patrol Guide Procedure 203-09, A business card is to be offered for a law enforcement activity, except in cases when a summons is issued, or an arrest is made as follows: f. Home search (12).

It is undisputed that § 87(2)(b) was not arrested and did not receive a summons, and that PO Espinal and Sgt. Bilach did not provide § 87(2)(b) or § 87(2)(b) with a business card. It is also undisputed that PO Espinal and Sgt. Bilach entered § 87(2)(b) bedroom and thereby searched it. § 87(2)(g)

It is therefore recommended that **Allegations N-Q** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Espinal has been a member of service for six years and has been a subject in one additional CCRB complaint and three additional allegations, none of which were substantiated.
- PO Romerochavez has been a member of service for 10 months and this is the first CCRB complaint to which he has been a subject.
- Sgt. Bilach has been a member of service for 12 years and this is the first CCRB complaint to which he has been a subject.
- PO Clabough has been a member of service for two years and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil, and Criminal Histories

CCRB Case # 202201365

- § 87(2)(b) declined to mediate this complaint.
- As of May 24, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 8

Investigator:	<u>Annette Rodriguez</u>	<u>Annette Rodriguez</u>	<u>05/27/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>5/27/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date